

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

CLAUDIA ELIZABETH PINEDA MENDOZA,

Petitioner

VS.

RONALD DAGOBERTO ESCALANTE

CASTILLO,

Respondent

) Case Number: FPT-25-378774

) Hearing Date: August 25, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF TEMPORARY EMERGENCY ORDER, CHILD CUSTODY,  
VISITATION (PARENTING TIME), ORDER SHORTENING TIME

**TENTATIVE RULING**

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

**A. Procedural History**

- 1) The parties are Petitioner Claudia Elizabeth Pineda Mendoza (Mother) and Respondent Ronald Dagoberto Escalante Castillo (Father). They share one minor child: Arleth Pineda (DOB: 08/31/22).
- 2) On December 12, 2025, Mother filed an ex parte application seeking sole legal and sole physical custody of the minor child with no visitation to Father. The Court denied Mother's ex parte application but set the matter on an Order Shortening Time (OST) for service and hearing on December 29, 2025.
- 3) On December 29, 2025, the Court continued the matter to February 2, 2026 for lack of service.
- 4) On February 2, 2026, the Court referred the parties to Family Court Services (FCS) Mediation on February 17, 2026 and set the matter for return hearing on April 14, 2026.
- 5) At the prior 4/14/26 hearing, the matter was continued to 4/21/26 on the Court's own motion due to lack of a Spanish interpreter.

1 6) On April 21, 2026, the matter was continued for May 21, 2026 due to unavailability of Spanish  
2 interpreter.

3 7) On May 21, 2026, Visiting Judge Diesman issued the following orders:

4 a. Petitioner (Mother) is awarded temporary sole legal and sole physical custody.

5 b. Respondent (Father) may have supervised visits through Rally Family Visitation Services  
6 (Rally), and Father shall be responsible for the cost of visitation. The parties shall  
7 contact Rally to start their intake within 10 days from 05/21/26. Both parties are  
8 admonished to cooperate with Rally.

9 c. Father may have video calls with the minor child at least twice per week for 15 minutes  
10 in the presence of either Mother or the child's maternal uncle. Father may have more  
11 video calls depending on Mother or the maternal uncle's availability.

12 d. Mother shall notify Father on any medical issues of the minor child.

13 e. Effective 05/21/26, the parties shall communicate solely via the Talking Parents  
14 application, and only about the minor child. All communication shall be peaceful and  
15 respectful.

16 f. The matter continued to 08/25/26 at 9:00 a.m. in Department 403. Both parties shall  
17 serve update declarations 10 days prior to the upcoming hearing, informing the Court the  
18 status of the Rally visits.

19 8) As of the Court's review (i.e., 08/21/26) neither party had complied with the Court's order  
20 requiring update declarations.

21 **B. Findings and Order**

22 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child  
23 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in  
24 violation to civil or criminal penalties, or both. The country of habitual residence of the minor  
25 child(ren) is the United States.

26 2) All existing orders shall remain in full force and effect.

27 3) **No appearances are required at hearing on August 25, 2026.**

28 4) The Court will prepare the Findings and Order After Hearing.  
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